

**Calendar Line 5 - 8****Case Name:** *Jason Adair v. Elisity, Inc.***Case No.:** 25CV476583**PLAINTIFF’S MOTIONS TO COMPEL FURTHER DISCOVERY RESPONSES AND REQUESTS FOR MONETARY SANCTIONS****BACKGROUND**

Plaintiff served written discovery on Defendant on or about October 25, 2025, including Form Interrogatories—General, Form Interrogatories—Employment, Special Interrogatories, Requests for Admission, and Requests for Production of Documents. Defendant did not timely serve discovery responses and did not timely respond to the complaint. Plaintiff then filed a request for entry of default on November 24, 2025.

On December 2, 2025, the parties entered into a stipulation under which Plaintiff agreed to withdraw the request for default and Defendant agreed to respond to the complaint and serve verified responses to Plaintiff’s outstanding discovery. On December 11, 2025, Defendant’s counsel asserted that Plaintiff’s claims were subject to arbitration and asked Plaintiff to agree to arbitrate. Plaintiff declined to stipulate to arbitration.

On January 2, 2026, Defendant served responses to the discovery consisting of objections asserting, among other things, that discovery was improper because the matter allegedly belonged in arbitration and Defendant would bring a motion to compel arbitration and stay proceedings. Defendant’s Form Interrogatory—Employment responses likewise asserted that Defendant would move to compel arbitration and stay proceedings and provided no substantive responses. Plaintiff filed the pending motions on January 12, 2026.

Defendant later served supplemental responses on February 12, 2026, and further responses and document production on June 15, 2026. Defendant nevertheless states that it preserved its arbitration objection in the supplemental responses. As of Plaintiff’s supplemental declaration filed August 26, 2026, Defendant had not filed any motion to compel arbitration, and no stay of this action or discovery had been sought or ordered. Defendant’s opposition also described its arbitration motion as “forthcoming,” not filed.

**Arbitration Does Not Stay These Motions or Excuse Defendant’s Discovery Obligations**

Defendant’s arbitration argument does not justify its refusal to provide timely, substantive discovery responses and does not warrant denial or a stay of these motions.

Code of Civil Procedure section 1281.4 requires a stay only where arbitration has been ordered or where an application for an order to arbitrate has been made and remains undetermined. Here, Defendant has not filed a petition or motion to compel arbitration, and no order compelling arbitration has been entered. An unfiled, anticipated motion does not trigger a statutory stay and does not permit a party to unilaterally suspend discovery obligations. Cal Code Civ Proc § 1281.4.

Defendant's position is particularly unpersuasive because it first raised arbitration after agreeing to serve verified discovery responses, then served objection-only responses, and then waited months while repeatedly describing a motion to compel arbitration as forthcoming. Defendant's failure to file the motion it has been invoking since December 2025 is dispositive of the stay issue for purposes of these discovery motions.

### **Effect of Defendant's Supplemental Responses**

Defendant argues that the motions should be denied as moot because Defendant later served supplemental responses. The Court disagrees in part.

The supplemental responses may narrow what remains for adjudication, and the Court will not decide any new, request-by-request challenge to the substantive sufficiency of supplemental responses that was not properly presented in these motions. However, the motions are not moot to the extent they seek an order that Defendant's untimely objections were waived and that Defendant must provide verified, code-compliant responses without objections. Defendant concedes that it continued to preserve at least its arbitration objection in the supplemental responses. That is the same objection challenged by the motions.

Because Defendant failed to timely respond and has not obtained relief from waiver, the Court finds Defendant waived its objections to the discovery at issue. That waiver includes objections based on privilege and work product for the interrogatories and requests for production. Defendant has not filed a motion for relief from waiver and has not shown a basis to preserve the objections asserted in its untimely responses.

### **Motion to Compel Further Responses to Form Interrogatories—General, Set One**

Plaintiff's motion to compel further responses to Form Interrogatories—General, Set One, is granted in part.

Defendant shall serve amended, verified, code-compliant responses to the Form Interrogatories—General at issue in the motion, without objections, within 10 calendar days of service of this order.

The Court does not adjudicate any new substantive deficiency in Defendant's later supplemental responses except to the extent those responses continue to assert waived objections, including the arbitration objection.

### **Motion to Compel Further Responses to Form Interrogatories—Employment, Set One**

Plaintiff's motion to compel further responses to Form Interrogatories—Employment, Set One, is granted in part.

The interrogatories at issue include Form Interrogatory Nos. 200.1, 200.2, 200.3, 200.4, 200.5, 200.6, 201.1, 201.2, 201.5, 201.6, 207.1, 207.2, 208.1, 208.2, 209.2, 211.1, 215.1, 215.2, and 216.1.

Defendant shall serve amended, verified, code-compliant responses to those interrogatories, without objections, within 10 calendar days of service of this order. The amended responses must be complete and straightforward and must answer each subpart to the extent information is reasonably available.

Defendant's arbitration objection is overruled. Defendant's privilege and work-product objections are waived for purposes of these interrogatories because Defendant did not timely respond and has not obtained relief from waiver.

### **Motion to Compel Further Responses to Requests for Production, Set One**

Plaintiff's motion to compel further responses to Requests for Production of Documents, Set One, is granted in part.

The requests at issue are Request Nos. 1 through 24.

Defendant shall serve amended, verified, code-compliant responses to Request Nos. 1 through 24, without objections, within 10 calendar days of service of this order. For each request, Defendant shall state whether it will comply in whole or in part, whether it lacks the ability to comply after a diligent search and reasonable inquiry, and whether responsive documents have been produced.

Defendant shall produce all responsive documents within 10 calendar days of service of this order to the extent such documents have not already been produced. If Defendant contends any responsive documents previously have been produced, the amended responses must identify the production sufficiently to permit Plaintiff to locate the responsive materials, including Bates ranges where available.

Defendant's arbitration objection is overruled. Defendant's privilege, work-product, privacy, burden, overbreadth, confidentiality, and proportionality objections are waived because Defendant did not timely respond and has not obtained relief from waiver. To the extent Defendant has withheld documents solely on the basis of those objections, Defendant shall produce them within the deadline stated above. Defendant may not continue withholding responsive documents based on waived objections absent further order of the Court.

### **Motion to Compel Further Responses to Requests for Admission, Set One**

Plaintiff's motion to compel further responses to Requests for Admission, Set One, is granted in part.

Defendant shall serve amended, verified, code-compliant responses to the Requests for Admission at issue in the motion, without objections, within 10 calendar days of service of this order. Each response shall admit the matter, deny the matter, or state in detail why Defendant cannot truthfully admit or deny the matter after reasonable inquiry.

To the extent Plaintiff seeks an order striking Defendant's continued assertion of waived objections, the motion is granted. To the extent Plaintiff seeks adjudication of new substantive deficiencies in supplemental responses not presented in the moving papers, that request is

denied without prejudice to a properly noticed motion following any required meet-and-confer process.

### **Sanctions**

Plaintiff requests monetary sanctions in connection with the discovery motions. The motions for Form Interrogatories—Employment and Requests for Production each request \$3,600 in sanctions. Plaintiff's consolidated reply requests sanctions on the four motions addressed in that reply. Defendant's opposition recognizes that Plaintiff seeks sanctions on each of the motions.

Sanctions are warranted. Defendant failed to timely serve discovery responses, served objection-only responses after agreeing to provide verified discovery responses, and relied on an arbitration motion that Defendant never filed. That conduct was not substantially justified. Defendant's later supplemental responses do not eliminate the basis for sanctions, particularly where the motions were necessary to address Defendant's waived objections and unilateral refusal to respond.

Plaintiff's request for monetary sanctions is granted for 1.5 hours at \$900 hourly attorney's fees per motion in the total amount of \$5,400. Defendant Elisity, Inc. shall pay that amount to Plaintiff's counsel within 30 calendar days of service of this order.

### **Order**

1. Plaintiff's motion to compel further responses to Form Interrogatories—General, Set One, is granted in part.
2. Plaintiff's motion to compel further responses to Form Interrogatories—Employment, Set One, is granted in part.
3. Plaintiff's motion to compel further responses to Requests for Production of Documents, Set One, is granted in part.
4. Plaintiff's motion to compel further responses to Requests for Admission, Set One, is granted in part.
5. Defendant's request to deny or stay the motions based on a forthcoming motion to compel arbitration is DENIED.
6. Defendant shall serve amended, verified, code-compliant responses, without objections, within 10 calendar days of service of this order.
7. Defendant shall produce all responsive documents required by this order within 10 calendar days of service of this order, to the extent not already produced.
8. Plaintiff's requests for monetary sanctions are granted for 1.5 hours per motion in the total amount of \$5,400. Defendant Elisity, Inc. shall pay that amount to Plaintiff's counsel within 30 calendar days of service of this order.

Plaintiff to prepare the final proposed order, accompanied by the necessary EFS-020 form, within 7 days of the hearing.

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